Before You Tour

The Newton first-time buyer's showing kit: questions to ask any agent before you sign, plus a showing scorecard

By Jared Cohen | REALTOR®
617-658-3035 · jared.cohen@exprealty.com
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Who this is for

The first time an agent asks you to sign something before a showing, it can feel like a lot, fast. **It doesn't have to.**

This kit is for the decision you make right before you start touring homes: which papers you'll sign, what they mean, and what to ask first. It explains the two documents you'll see before touring homes in Massachusetts and gives you the questions to ask before you sign. It ends with a scorecard to fill out at every showing and open house.

Read it before your first tour, then bring the scorecard with you.

The Two Papers You'll See First

1. Written buyer agreement

- What it is: an agreement between you and your agent that spells out the services they'll provide and how they'll be paid.
- When: since August 17, 2024, NAR's MLS policy has required agents who work with a buyer to have one signed before touring a home, in person or by live video. Most MLSs require it, and many brokerages do too.
- What it must include under NAR policy:
    - how much your agent will be paid, or exactly how it's figured, clearly defined (for example, a flat fee, a percentage, or an hourly rate), not open-ended or a range
    - a promise that your agent won't collect more than that amount from any source
    - a conspicuous statement that broker fees are not set by law and are fully negotiable
    - What NAR doesn't dictate: how long it lasts. It could cover one day, one house, or longer.
    - When you don't need one: visiting an open house on your own, or just asking an agent about their services.

2. Massachusetts relationship disclosure

- What it is: a state form showing how the licensee is working with you.
- When: every licensee must give it to you at the first personal meeting to discuss a specific home, or electronically before you sign any contract if you never meet in person. At an open house, the host may post it instead.
- The three relationships:
    - Seller's agent: puts the seller's interests first.
    - Buyer's agent: puts your interests first.
    - Facilitator: helps both sides reach a deal but represents neither.
- Dual agency (one agent or firm representing both sides) is legal in Massachusetts only with written, informed consent from both the buyer and the seller.

Why it matters: a Massachusetts example

By state law, real estate agents can't directly recommend a specific home inspector. If you ask, they can give you the state's full list of licensed home inspectors. The exception is an agent working exclusively for you as your buyer's broker, under a written agreement or written disclosure. Who an agent works for changes what they're allowed to do for you.

Questions to ask before you sign

1. How long does this agreement last? Is a shorter term, or a single home, an option?
2. Is it exclusive? What happens if I find a home on my own or at an open house?
3. Exactly how is your compensation determined, and when is it owed?
4. If a seller agrees to contribute toward it, how does that work? (Any seller contribution is negotiated, not guaranteed.)
5. How do I end the agreement? After it ends, is there a period when I could still owe compensation?
6. Which services are included: showings, pricing analysis, offer strategy, inspection coordination, negotiation, through closing?
7. Will you be my buyer's agent, a facilitator, or possibly a dual or designated agent? How would that be handled?
8. How quickly do you respond, and how do you prefer to communicate?

Jared's take

Ask every one of these questions, **including to me**. An agent who gets annoyed by them just told you something useful. I'd rather you sign knowing exactly what's in it than sign fast and wonder later. For anything legal in the fine print, your attorney gets the final word.

Before your first showing

- ☐ Pre-approval letter from your lender in hand.
- ☐ A rough yearly budget beyond the price.
    - Example for property tax: Newton's FY2026 residential rate, the latest rate the city has set as of October 2026, is $9.69 per $1,000 of assessed value, which works out to $969 a year for every $100,000 of assessed value. The city resets the rate each fiscal year, so check its Tax Rate page for the latest (newtonma.gov).
- ☐ Must-haves, ranked: commute, outdoor space, parking, layout, and the condition you're willing to take on.
- ☐ A commute test planned for a weekday at your real travel time. Check mbta.com schedules if you'll ride the T or the Commuter Rail.
- ☐ Phone charged for photos and notes, and a small flashlight for basements and closets.

At the showing or open house

- Assume you might be on camera or audio. Save your reactions, your top budget, and how much you love the place for after you leave.
- At an open house, the host usually works for the seller. Be friendly, ask about the home, and keep your price ceiling and timeline to yourself.
- Look past the staging: furniture can hide room size, wall condition, and floor issues.
- Check what staging can't fix: the light at that time of day, street noise, closet and storage space, and water stains on ceilings or in the basement.
- Open closets, run a faucet, and look at the electrical panel and heating system labels if the host or your agent says it's OK.
- Don't negotiate at the open house. Go home, compare, and decide with your scorecard.

Jared's take

Open houses are a great way to calibrate what your budget buys in different villages. Go to as many as you want. Just treat every conversation there as if the seller can hear it, because the host usually represents the seller.

Get the Showing Scorecard on the next page!

Showing scorecard (copy one per home)

The home

- ☐ Address _____
- ☐ List price _____
- ☐ Date and time visited _____

The basics (rate each from 1 to 5)

- ☐ Light ___ / 5
- ☐ Layout and flow ___ / 5
- ☐ Storage ___ / 5
- ☐ Outdoor space ___ / 5
- ☐ Parking ___ / 5
- ☐ Commute (after your test run) ___ / 5

Condition flags (mark any you noticed)

- ☐ Water stains or a damp smell _____
- ☐ Older electrical panel or few outlets _____
- ☐ Older heating system _____
- ☐ Roof, chimney, or gutter wear visible from outside _____
- ☐ Windows sticking, rotted, or painted shut

Built before 1978: in Massachusetts you get at least 10 days (longer if you and the seller agree) to have a lead inspection or risk assessment done, if you choose to. You can also waive it in writing. The 10-day window doesn't apply to foreclosure sales. You'll get the state's Property Transfer Lead Paint Notification before you sign a purchase and sale agreement (Mass. Dept. of Public Health, mass.gov; U.S. EPA, 40 CFR 745).

Gut check

- ☐ Noise level when you visited _____
- ☐ What I loved _____

_____

_____

- ☐ What I'd change_____

_____

_____

- ☐ Overall score (1 to 10) ___ / 10
- ☐ Would I write an offer? Yes, maybe, or no _____

Next steps

Send me the first two or three homes you want to see. Before we tour, I'll walk you through the eXp Realty buyer agreement line by line, with no pressure to sign on the spot, and tell you what I'd want to know about each home.

Text or email me: **617-658-3035 · jared.cohen@exprealty.com**

Jared Cohen, REALTOR® | eXp Realty

Sources

- National Association of REALTORS®, Consumer Guide to Written Buyer Agreements (nar.realtor): the August 17, 2024 start date; an agreement before touring in person or virtually; none needed for an open house on your own or for asking about services; pay clearly defined, not open-ended, negotiable, and not set by law.
- National Association of REALTORS®, Written Buyer Agreements 101 (nar.realtor): the required contents; NAR doesn't set the term (one day, one house, or longer); live virtual tours; optional warnings about sellers recording video and audio during tours.
- National Association of REALTORS®, Handbook on Multiple Listing Policy, Policy Statement 8.13, Written Buyer Agreements Required (nar.realtor).
- Massachusetts Board of Registration of Real Estate Brokers and Salespersons, Mandatory Licensee-Consumer Relationship Disclosure and the Board's guidance on 254 CMR 3.00(13): delivery at the first personal meeting, before a contract when there is no meeting, and posting at open houses; dual and designated agency (mass.gov).
- Massachusetts General Laws c.112 §87YY½, home inspector recommendations (malegislature.gov).
- City of Newton Assessing Department, Tax Rate (Current and Prior Year) (newtonma.gov).
- Massachusetts Department of Public Health, Childhood Lead Poisoning Prevention Program, Property Transfer Lead Paint Notification (mass.gov), and U.S. Environmental Protection Agency, lead-based paint disclosure rule, 40 CFR 745 (epa.gov): at least 10 days, or longer if buyer and seller agree, for a lead inspection or risk assessment; the written waiver; the foreclosure-sale exception; and the notice before a purchase and sale agreement.
- MBTA schedules (mbta.com).

Disclaimer

Jared Cohen, REALTOR® | eXp Realty. Licensed real estate salesperson in Massachusetts.
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